

Merchant Shipping (Control of Anti-fouling System) Rules, 2016

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Union of India - Act

Merchant Shipping (Control of Anti-fouling System) Rules, 2016

UNION OF INDIA

India

Merchant Shipping (Control of Anti-fouling System) Rules, 2016

Rule MERCHANT-SHIPING-CONTROL-OF-ANTI-FOULING-SYSTEM-RULES-2016 of 2016

Published on 19 January 2016

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Merchant Shipping (Control of Anti-fouling System) Rules, 2016

Published vide Notification No. G.S.R. 84(E), dated 19th January, 2016

Ministry of Shipping

G.S.R. 84(E). - In exercise of the powers conferred by section 356Y of the Merchant Shipping Act, 1958 (44 of 1958

), the Central Government hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Merchant Shipping (Control of Anti-fouling System) Rules, 2016.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Merchant Shipping Act, 1958 (44 of 1958

);

(b)

"Convention" shall have the same meaning assigned to it in clause (d) of section 356 Q of the Act;

(c)

"recognised organisation" means any organisation recognised by the Director General;

(d)

words and expressions used in these rules but not defined and defined in the Act shall have the respective meanings assigned to them in the Act.

3.

Controls on anti-fouling systems.

(1)

Every Indian ship and other ships which are not entitled to fly the Indian flag but operating under the authority of India, shall comply with the requirements set forth in sub-rule (2) including the applicable standards and requirements as prescribed from time to time as well as effective measures to ensure that such ships comply with the requirements, as may be specified by the Director General from time to time.

(2)

The applicable control measures referred to in sub rule (1) of this rule shall be as provided in Annex 1 of the Convention, which are specified in the Table below:

Table

Anti-fouling system

Control measures

Application

Organotin compounds which act as biocides in anti-fouling systems

Ships shall not apply or re-apply such compounds

All ships constructed on or after the 1st January, 2003.

Organotin compounds which act as biocides in anti-fouling systems

Ships either,-(1) shall not bear such compounds on their hulls or external parts or surfaces; or(2) shall bear a coating that forms a barrier to such compounds leaching from the underlying non-compliant antifouling systems

All ships (except fixed and floating platforms, floating storage units, and floating production storage and offloading units that have been constructed prior to the 1st January, 2003 and that have not been in dry-docked on or after the 1st January, 2003).

4.

Procedure for survey and certification.

(1)

Ships of 400 gross tonnage and above engaged in international voyages or plying along the coast of India, shall be subject to surveys as specified below:

(a)

an initial survey, before the ship has been put into service, or before the International Anti-Fouling System Certificate or,

as the case may be, the Indian Anti-Fouling System Certificate is issued for the first time; and

(b)

a survey, when the anti-fouling systems have been changed or replaced, and such change or replacement has been endorsed on the International Anti-Fouling System Certificate or, as the case may be, the Indian Anti-Fouling System Certificate.

(2)

The surveys referred to in sub-rule (1) shall be such as to ensure that the ship's anti-fouling system is in accordance with and fully complies with the provisions of the Act and these rules.

(3)

(a)

The surveys of the ships referred to in sub-rule (1) shall be carried out by officers authorised by the Director General or by recognised organisations.

(b)

The Director General shall authorise the surveyor or the recognised organisations to conduct surveys so as to -

(i)

verify whether the ships comply with the provisions of rule 3; and

(ii)

carry out surveys, if requested by the appropriate authorities of a port State that is a Party to the Convention.

(c)

When the Director General or a recognised organisation determines that the ship's anti-fouling system does not confirm either to the particulars of the International Anti-Fouling System Certificate, or the Indian Anti-Fouling System Certificate, or to the provisions of the Act or these rules, the surveyor or the recognised organisation shall immediately ensure that corrective action is taken to bring the ship into compliance, and the surveyor or the recognised organisation shall notify the Director General of any such determination.

(d)

If the corrective action referred to in clause(c) is not complied with, the Director General shall be informed in writing by the surveyor or the recognised organisation forthwith and the International Anti-Fouling System Certificate or the Indian Anti-Fouling System Certificate shall not be issued or if already issued, the respective certificate shall, by order, be withdrawn by the Director General.

(e)

In a situation specified in clause(c) of sub rule (3), if the ship is in the port of another Party, the appropriate authorities of the port State and Director General shall be informed forthwith in writing by the surveyor or recognized organisation.

5.

Issue or endorsement of an International Anti-Fouling System Certificate or Indian Anti-Fouling System Certificate.

(1)

The Director General or a recognised organisation shall require, after the successful completion of a survey in accordance with rule 4, to issue or endorse:

(i)

International Anti-Fouling System Certificate to an Indian ship or other ships entitled to fly Indian flag or operating under its authority, which is of 400 gross tonnage and above and engaged in International voyage; and

(ii)

Indian Anti-Fouling System Certificate to a ship Indian ships entitled to fly Indian flag which are of 400 gross tonnage and above, with appropriate conditions as applicable for each type of ships and not engaged in international voyage and are required to be registered under this Act, as the case may be.

(2)

The Certificate and record shall be drawn up in the form corresponding to the model given in schedule 1 or as the case may be, schedule 2, appended to these rules.

6.

Issue or Endorsement of an International Anti-Fouling System Certificate by Director General or another country which is party to Convention.

(1)

At the request of the Director General of Shipping, the Government of a country to which the Convention applies or vice versa, may cause a ship to be surveyed and, if satisfied, shall issue or authorise the issue of the International Anti-Fouling System Certificate to the ship and, where appropriate, endorse or authorise the endorsement of the International Anti-Fouling System Certificate for the ship in accordance with the Convention.

(2)

Upon complying with sub-rule (1) of this rule, a copy of the Certificate and a copy of the survey report shall be transmitted as soon as possible to the Director General, or to the Government of another country which is party to the Convention, as the case may be.

(3)

The certificate so issued shall contain a statement that it has been issued at the request, of the Director General, or of the Government of another country which is party to the Convention, as the case may be.

7.

Validity of an International Anti-Fouling System Certificate or Indian Anti-Fouling System Certificate.

(1)

The International Anti-Fouling System Certificate or the Indian Anti-Fouling System Certificate issued under rule 5, or the International Anti-Fouling System Certificate issued under rule 6, shall cease to be valid in the following cases, namely:-

(a)

if the anti-fouling system is changed or replaced and the certificate is not endorsed in accordance with the provisions of these rules; and

(b)

upon transfer of the ship to the flag of another State.

(2)

The issue of a new certificate to a ship transferred from another flag shall be based on a valid certificate issued by the previous flag.

8.

Declaration on anti-fouling system.

(1)

A ship of 24 meters or more in length, but less than 400 gross tonnage, engaged in international voyages(excluding fixed or floating platforms, floating storage units, and floating production storage and off-loading units), shall be required to carry a declaration signed by the owner or owner's authorised agent, and such declaration shall be accompanied by appropriate documentation (such as a paint receipt or a contractor invoice) or contain appropriate endorsement.

(2)

The declaration referred in sub rule (1) shall be drawn up in the form corresponding to the model given in Schedule 3.

9.

Procedure for control of waste anti-fouling materials.

- The waste from the application or removal of anti-fouling system are collected, handled, treated and disposed of in a safe and environmentally sound manner in accordance with Hazardous Wastes (Management, Handling and Transboundary Movement) Rules, 2008 as notified by the Central Government in the Ministry of Environment and Forests, vide notification number S.O. 2265 dated the 24th September, 2008.

10.

Fees.

- The fees which may be levied for survey, inspection and certification under these rules shall be as specified in the Schedule 4.

11.

Penalty.

- Whoever contravenes any provisions of these rules shall be punished in accordance with the provisions contained under sub section (2) of section 458 of the Act.

Schedule 1

[See sub-rule (2) of the rule 5]

International Anti-Fouling System Certificate

(This certificate shall be supplemented by a Record of Anti-fouling Systems)

Issued under the International Convention on the Control of Harmful Anti-Fouling Systems on Ships

Under the authority of the Government of.....(name of the State) by(Person or organisation authorised)

When a Certificate has been previously issued, this Certificate replaces the certificate dated.....

[Particulars of ship]

[Alternatively, the particulars of the ship may be placed horizontally in boxes.]

Name of ship.....

Distinctive number or letters.....

Port of registry.....

Gross tonnage.....

[IMO Number]

[In accordance with International Maritime Organisation ship Identification Number Scheme adopted by the Organisation by resolution A.600 (15).]

.....

An anti-fouling system controlled under Annex 1 to the convention has not been applied during or after construction of this ship

{|

|-

| An anti-fouling system controlled under Annex 1 to the convention has been applied on this ship previously, but has been removed by.....(insert name of the facility)

on.....(date)

|

|-

| An anti-fouling system controlled under Annex 1 to the convention has been applied on this ship previously, but has been covered with a sealer coat applied by(insert name of the facility on.....(date)

|

|-

| An anti-fouling system controlled under Annex 1 to the convention was applied on this ship prior to.....[(date)]

[Date of entry into force of the control measure.]

,

but must be removed or covered with a sealer coat prior to.....[(date)]

[Date of expiration of any implementation period specified in article 4(2) or Annex 1 to the Convention.]

|

|}

This is to Certify that:

(1)
the ship has been surveyed in accordance with regulation 1 of Annex 4 to the Convention; and

(2)
the survey shows that the anti-fouling system on the ship complies with the applicable requirements of Annex 1 to the Convention.

Issued at.....(Place of issue of Certificate)

.....

.....

(Date of issue)

(Signature of authorized official issuing the

Certificate)

Date of completion of the survey on which this certificate is issued:.....

Record of Anti-Fouling Systems

This Record shall be permanently attached to the International Anti-Fouling System Certificate.

Particulars of ship

Name of ship :.....

Distinctive number or letters :.....

IMO number:.....

Details of anti-fouling system(s) applied

Type(s) of anti-fouling system(s) used.....

Date(s) of application of anti-fouling system(s).....

Name(s) of company(ies) and facility(ies)/location(s) where applied.....

Name(s) of anti-fouling system manufacturer(s).....

Name(s) and colour(s) of anti-fouling system(s).....

Active ingredient(s) and their Chemical Abstract Services Registry Number(s) (CAS number(s))

.....

Type(s) of sealer coat, if applicable.....

Name(s) and colour(s) of sealer coat applied, if applicable.....

Date of application of sealer coat

THIS IS TO CERTIFY that this Record is correct in all respects.

Issued at.....(Place of issue of Record)

.....

.....

(Date of issue)

(Signature of authorized official issuing the
Record)

[Endorsement of the Records]

[This page of record shall be reproduced and added to the Record as considered necessary by the Administration.]

THIS IS TO CERTIFY that a survey required in accordance with regulation 1(1)(b) of Annexe 4 to the convention found
that the ship was in compliance with the Convention

Details of anti-fouling system(s) applied

Type(s) of anti-fouling system(s) used.....

Date(s) of application of anti-fouling system(s).....

Name(s) of company(ies) and facility(ies) location(s) where applied.....

Name(s) of anti-fouling system(s) manufacturer(s).....

Name(s) and colour(s) of anti-fouling system(s).....

Active ingredient(s) and their Chemical Abstract Services Registry Number(s)(CAS number(s)).....

Type(s) of sealer coat, if applicable.....

Name(s) and colour(s) of sealer coat applied, if applicable

Date of application of sealer coat.....

Signed:.....

(Signature of authorised official issuing the Record)

Place :.....

[Date]

[Date of completion of the survey on which this endorsement is made.]

.....

(Seal or stamp of the authority)

Schedule 2

[See sub-rule (2) of the rule 5]

Indian Anti-Fouling System Certificate

(This certificate shall be supplemented by a Record of Anti-fouling Systems)

Issued under Merchant Shipping (Control of Anti Fouling System) Rules, 2016 on Ships under the authority of the Government of India by..... (Person or organisation authorised)

When a Certificate has been previously issued, this Certificate replaces the certificate dated.....

[Particulars of ship]

[Alternatively, the particulars of the ship may be placed horizontally in boxes.]

Name of ship.....

Distinctive number or letters.....

Port of registry.....

Gross tonnage.....

[IMO Number]

[In accordance with International Maritime Organisation ship Identification Number Scheme adopted by the Organisation by resolution A.600 (15).]

.....
An anti-fouling system controlled under rule 3 has not been applied during or after construction of this ship

{|

|-

| An anti-fouling system controlled under rule 3 has been applied on this ship previously, but has been removed by.....(insert name of the facility)

on.....(date)

|

|-

| An anti-fouling system controlled under rule 3 has been applied on this ship previously, but has been covered with a sealer coat applied by(insert name of the facility) on.....(date)

|

|-

| An anti-fouling system controlled under rule 3 was applied on this ship prior to.....[(date)]

[Date of entry into force of the control measure.]

,

but must be removed or covered with a sealer coat prior to.....[(date)]

[Date of expiration of any implementation period specified in article 4(2) or Annex 1 to the Convention.]

|

|}

This is to Certify that:

(1)

the ship has been surveyed in accordance with rule 4 of the Merchant Shipping (Control of Anti-Fouling System) Rules, 2016; and

(2)

the survey shows that the anti-fouling system on the ship complies with the applicable requirements of Merchant Shipping (Control of Anti-Fouling System) Rules, 2016.

Issued at.....(Place of issue of Certificate)

.....

.....

(Date of issue)

(Signature of authorized official issuing the Certificate)

Date of completion of the survey on which this certificate is issued:.....

Record of Anti-Fouling Systems

This Record shall be permanently attached to the International Anti-Fouling System Certificate.

Particulars of ship

Name of ship :.....

Distinctive number or letters :.....

IMO number:.....

Details of anti-fouling system(s) applied

Type(s) of anti-fouling system(s) used.....

Date(s) of application of anti-fouling system(s).....

Name(s) of company(ies) and facility(ies)/location(s) where applied.....

Name(s) of anti-fouling system manufacturer(s).....

Name(s) and colour(s) of anti-fouling system(s).....

Active ingredient(s) and their Chemical Abstract Services Registry Number(s) (CAS number(s))

.....

Type(s) of sealer coat, if applicable.....

Name(s) and colour(s) of sealer coat applied, if applicable.....

Date of application of sealer coat

THIS IS TO CERTIFY that this Record is correct in all respects.

Issued at.....(Place of issue of Record)

.....

.....

(Date of issue)

(Signature of authorized official issuing the
Record)

[Endorsement of the Records]

[This page of record shall be reproduced and added to the Record as considered necessary by the Administration.]

THIS IS TO CERTIFY that a survey required in accordance with rule 4(1)(b) of the Merchant Shipping (Control of
Anti-Fouling System) Rules, 2016 found that the ship was in compliance with the Convention

Details of anti-fouling system(s) applied

Type(s) of anti-fouling system(s) used.....

Date(s) of application of anti-fouling system(s).....

Name(s) of company(ies) and facility(ies) location(s) where applied.....

Name(s) of anti-fouling system(s) manufacturer(s).....

Name(s) and colour(s) of anti-fouling system(s).....

Active ingredient(s) and their Chemical Abstract Services Registry Number(s)(CAS number(s)).....

Type(s) of sealer coat, if applicable.....

Name(s) and colour(s) of sealer coat applied, if applicable

Date of application of sealer coat.....

Signed:.....

(Signature of authorised official issuing the Record)

Place :.....

[Date]

[Date of completion of the survey on which this endorsement is made.]

.....

(Seal or stamp of the authority)

Schedule 3

[See sub-rule (2) of the rule 8]

Model form of Declaration on Anti-Fouling System While Engaged in International Voyage

Declaration on Anti-Fouling System

Drawn up under the

International Convention on the Control of Harmful Anti-Fouling Systems on Ships

Name of ship.....

Distinctive number or letters.....

Port of registry.....

Length.....

Gross tonnage.....

IMO number (if applicable).....

I declare that the anti-fouling system used on this ship complies with Annex 1 of the Convention.

.....

.....

(Date)

(Signature of owner or owner's authorised agent)

Endorsement of anti-fouling system(s) applied

Type(s) of anti-fouling systems(s) used and date(s) of application.....

.....

.....

.....

(Date)

(Signature of owner or owner's authorised agent)

Type(s) of anti-fouling system(s) used and date(s) of application.....

.....

.....

.....

(Date)

(Signature of owner or owner's authorised agent)

Type(s) of anti-fouling system(s) used and date(s) of application.....

.....

.....

.....

(Date)

(Signature of owner or owner's authorised agent)

Schedule 4

(See rule 10)

Serial Nos.

Description of survey, inspection and
certification

Fee to be levied (Rupees)

(1)

(2)

(3)

1.

Gross Tonnage of Ships up to 500 tonsInitial Survey and
any subsequent survey for endorsement

10,000

2.

Gross Tonnage of Ships 501 to 20,000 tonsInitial Survey
and any subsequent survey for endorsement

30,000

3.

Gross Tonnage of Ships 20001 to tons 30000 tonsInitial
Survey and any subsequent survey for endorsement

40,000

4.

Gross Tonnage of Ships 30001 to tons 50000 tonsInitial

Survey and any subsequent survey for endorsement
50,000

5.

Gross Tonnage of Ships 50001 to tons 100000 tonsInitial

Survey and any subsequent survey for endorsement
60,000

6.

Gross Tonnage of Ships 100000 tons and aboveInitial

Survey and any subsequent survey for endorsement
70,000

7.

Issuance of certificate

3,000

8.

Issuance of endorsement

2,000

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Translation